

SENATE No. 16

Senate, February 10, 2025 -- Text of the Senate amendment (Senator Rodrigues) to the House Bill making appropriations for fiscal year 2025 to provide for supplementing certain existing appropriations and for certain other activities and projects (House, No. 58)

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

1 SECTION 1. To provide for supplementing certain items in the general appropriation act
2 and other appropriation acts for fiscal year 2025, the sums set forth in section 2A are hereby
3 appropriated from the Transitional Escrow Fund established in section 16 of chapter 76 of the
4 acts of 2021, as amended by section 4 of chapter 98 of the acts of 2022, unless specifically
5 designated otherwise in this act or in those appropriation acts, for the several purposes and
6 subject to the conditions specified in this act or in those appropriation acts, and subject to the
7 laws regulating the disbursement of public funds for the fiscal year ending June 30, 2025. These
8 sums shall be in addition to any amounts previously appropriated and made available for the
9 purposes of those items. These sums shall be made available through the fiscal year ending June
10 30, 2026.

11 SECTION 2A. To provide for certain unanticipated obligations of the commonwealth, to
12 provide for an alteration of purpose for current appropriations and to meet certain requirements
13 of law, the sums set forth in this section are hereby appropriated from the Transitional Escrow
14 Fund established in section 16 of chapter 76 of the acts of 2021, as amended by section 4 of
15 chapter 98 of the acts of 2022, unless specifically designated otherwise in this section, for the

several purposes and subject to the conditions specified in this section, and subject to the laws regulating the disbursement of public funds for the fiscal year ending June 30, 2025. Except as otherwise stated, these sums shall be made available through the fiscal year ending June 30, 2026.

1599-2625 For purposes related to supportive services and safe shelter for unhoused families in the commonwealth; provided, that the secretary of administration and finance may transfer funds from this item to state agencies as defined in section 1 of chapter 29 of the General Laws; provided further, that the secretary of administration and finance shall notify the house and senate committees on ways and means not less than 14 days prior to any such transfer of funds from this item; provided further, that temporary respite sites shall be available to eligible families upon arrival in the commonwealth, subject to appropriation, rules, regulations and availability, for a period of not more than 30 days, subject to any extensions upon written certification by the secretary of housing and livable communities; provided further, that temporary respite sites shall be available for a period of not more than 30 days to families who appear eligible but are unable to provide sufficient documentation as required by clause (iv) of subsection (b) of section 6, subject to appropriation, rules, regulations and availability; provided further, that temporary respite sites shall only be available to families who verify their identity and provide information sufficient to comply with paragraph (C 1/2) of section 30 of chapter 23B of the General Laws; provided further, that the length of stay at a temporary respite site shall constitute a benefit received under the emergency housing assistance program for the purpose of calculating length of stay limit under subparagraph (3) of paragraph (G) of said section 30 of said chapter 23B; provided further, that placement in a temporary respite site shall not make a family ineligible for the bridge shelter track after proving eligibility pursuant to section 6; provided

further, that the executive office of housing and livable communities may work with resettlement agencies to coordinate the provision of services to families and pregnant women in temporary respite centers and shall continue to facilitate the provision of services to said families and pregnant women; provided further, that funds appropriated in this item may be expended for any purpose under item 1599-0514 of section 2A of chapter 77 of the acts of 2023, item 1599-1213 of section 2A of chapter 88 of the acts of 2024 and items 7004-0101, 7004-0108 and 7004-9316 of section 2 of chapter 140 of the acts of 2024; provided further, that the secretary of administration and finance may transfer funds from this item to the Workforce Competitiveness Trust Fund, established in section 2WWW of chapter 29 of the General Laws, for work programs targeted at supporting the populations served by this item; and provided further, that reporting requirements under said item 1599-0514 of said section 2A of said chapter 77 and said item 1599-1213 of said section 2A of said chapter 88 shall apply to this item.....\$425,000,000

SECTION 3. Section 30 of chapter 23B of the General Laws, as most recently amended by section 3 of chapter 88 of the acts of 2024, is hereby further amended by inserting after paragraph (C) the following paragraph:-

(C 1/2)(1) The executive office shall require each individual adult applicant or beneficiary to disclose on their initial or subsequent application for emergency housing assistance benefits all prior criminal convictions, whether in the commonwealth or another jurisdiction. The executive office shall not require prior convictions that have been sealed or expunged to be disclosed. An adult applicant or beneficiary who fails to disclose prior criminal convictions consistent with this paragraph shall not be eligible for benefits and any existing benefits shall be terminated.

(2) The executive office shall obtain criminal offender record information from the department of criminal justice information services for each individual adult applicant or beneficiary prior to placement into the emergency housing assistance program. An adult applicant or beneficiary who fails to consent to the executive office obtaining such criminal offender record information consistent with this paragraph shall not be eligible for benefits and any existing benefits shall be terminated. The executive office shall establish, through regulations, protocols on information received from the department of criminal justice information services.

(3) The executive office shall promulgate regulations placing limitations or exclusions on individuals found to have convictions or pending charges for serious crimes, as defined by the office by regulation.

SECTION 4. Paragraph (G) of said section 30 of said chapter 23B, inserted by section 3 of chapter 88 of the acts of 2024, is hereby amended by striking out subparagraphs (3) to (9), inclusive, and inserting in place thereof the following 6 subparagraphs:-

(3) A family with children or a pregnant woman with no other children that receives benefits through the emergency housing assistance program shall, subject to appropriation and rules, regulations and availability, remain eligible for the program for not more than 6 consecutive months.

(4) A family with children or pregnant woman with no other children that receives benefits through the emergency housing assistance program may receive extensions to the length of stay limit under subparagraph (3) upon written certification of hardship by the secretary; provided, however, that such hardship waivers shall be granted by the secretary for a family with

an individual who: (i) is qualified as a veteran under clause Forty-third of section 7 of chapter 4 who is not enrolled in services specifically tailored to veterans, including, but not limited to, those administered by the executive office of veterans services; (ii) is at imminent risk of harm due to domestic violence; (iii) is documented as having a disability; (iv) has imminent pending placement in housing; (v) has a high-risk pregnancy or has recently given birth; or (vi) satisfies any additional criteria the secretary of housing and livable communities deems necessary.

(5) The executive office shall limit the number of families with children and pregnant women with no other children to be terminated from the emergency housing assistance program in any week due to reaching the length of stay limit established under subparagraph (3). The executive office shall provide notice not less than 90 days prior to the termination of benefits for each family and pregnant woman.

(6) The executive office shall promulgate regulations or guidance for eligibility which shall: (i) establish procedures for the termination of benefits pursuant to this paragraph, including for a hardship waiver under subparagraph (4); and (ii) allow a family with children or a pregnant woman with no other children to reapply for the emergency housing assistance program; provided, however, that eligibility determinations when reapplying for the program shall be consistent with the guidance issued by the secretary of housing and livable communities.

(7) The executive office shall provide printed handouts to families with children and pregnant women receiving benefits through the emergency housing assistance program, which shall include, but shall not be limited to, information about: (i) authorized training programs; (ii) approved training programs; (iii) food resources, including food pantries; (iv) services offered by resettlement agencies; (v) other housing programs; (vi) other nonprofit or available resources the

executive office deems necessary or helpful; and (vii) length of stay limits and extension process.
All written information shall be translated into multiple languages and shall be available on the executive office's website.

(8) This paragraph shall apply during any period in which the secretary of housing and livable communities has determined that the shelter system unable to meet all current and projected demand for shelter from eligible families considering the facts and circumstances then existing in the commonwealth.

SECTION 5. Said section 30 of said chapter 23B, as most recently amended by said section 3 of said chapter 88, is hereby further amended by adding the following paragraph:-

(H) The executive office shall require each adult applicant or beneficiary that joins a family receiving emergency housing assistance to provide notice to the executive office of any addition to the family and the executive office shall require a complete review of all information necessary to verify the individual's eligibility pursuant to this section and 760 CMR 67.00 or successor regulations. An adult applicant or beneficiary who fails to report to the executive office for complete verification of requirements pursuant to this section or 760 CMR 67.00 or successor regulations shall not be eligible for benefits and any existing benefits shall be terminated.

SECTION 6. (a) For the purposes of this section, the following words shall have the following meanings unless the context clearly requires otherwise:

"Emergency housing assistance program", the program of emergency housing assistance program under section 30 of chapter 23B of the General Laws and funded by item 7004-0101 of section 2 of chapter 140 of the acts of 2024.

“Executive office”, the executive office of housing and livable communities.

(b) Notwithstanding item 7004-0101 of section 2 of chapter 140 of the acts of 2024, the executive office shall:

(i) require families whose income exceeds 200 per cent of the federal poverty level for 4 consecutive months to be deemed ineligible for the emergency housing assistance program;

(ii) require that all emergency housing assistance program benefits be provided to families consisting entirely of residents of the commonwealth who are citizens of the United States or persons lawfully admitted for permanent residence or otherwise permanently residing in the United States under the color of law, except in cases where a child in the family is a citizen of the United States, a person lawfully admitted for permanent residence or a person permanently residing in the United States under color of law;

(iii) to the extent practicable, make best efforts to place a family within 20 miles of the household’s home community;

(iv) verify, for each applicant, their: (A) identity; (B) Massachusetts residency pursuant to clause (v); (C) relationship status; (D) pregnancy status; and (E) other eligibility requirements under said item 7004-0101 of said section 2 of said chapter 140 and pursuant to 760 CMR 67.00 or any successor regulations, through third-party verification or otherwise, prior to placement in an emergency shelter; provided, however, that the executive office shall not be required to provide shelter to families who are unable to provide required verifications in this section prior to placement; provided further, that the executive office may offer a case-specific waiver for exigent circumstances and at the discretion of the executive office; and provided further, that the executive office shall establish, through regulations, a criteria for case-specific waivers, which

149 shall include, but not be limited to, waivers for: (1) an imminent threat of domestic violence; (2)
150 families with a family member who has a documented disability; (3) families with a family
151 member who has a high-risk pregnancy or who has recently given birth; and (4) families with a
152 qualified veteran under clause Forty-third of section 7 of chapter 4 of the General Laws who is
153 not enrolled in services specifically tailored to veterans, including, but not limited to, those
154 administered by the executive office of veterans services; and

155 (v) require each applicant for benefits under the emergency housing assistance program
156 to establish residency in the commonwealth; provided, however, that an applicant's family shall
157 be required to show an intent to remain in the commonwealth, which may be shown through
158 sources of verification accepted by the executive office; provided further, that the executive
159 office shall promulgate regulations on sources of acceptable verification which shall include, but
160 shall not be limited to, documentation showing a person is enrolled with MassHealth,
161 documentation showing a person receives public benefits in the commonwealth, a bill or other
162 insurance documentation with an address, an email, letter or statement from a licensed health
163 care worker on office letterhead or office email stating that the person resides in the
164 commonwealth or a photo identification issued by the commonwealth.

165 (c) An applicant who appears to be eligible for shelter based on statements provided by
166 the family and any other information in the possession of the executive office but who need
167 additional time to obtain any third-party verifications reasonably required by the executive office
168 shall be placed on a waitlist for emergency housing assistance; provided, however, that each
169 adult in the family of applicants shall provide proof of identity to be placed on said waitlist.

SECTION 7. Notwithstanding section 30 of chapter 23B of the General Laws, for the period of December 31, 2025 to December 31, 2026, inclusive, the total capacity of the emergency housing assistance program established pursuant to said section 30 of said chapter 23B shall not exceed 4,000 families.

SECTION 8. The executive office for administration and finance shall submit a biweekly report to the clerks of the senate and house of representatives and the house and senate committees on ways and means that shall include, but not be limited to: (i) reporting under item 1599-0514 of chapter 77 of the acts of 2023; (ii) reporting required under section 19 of chapter 88 of the acts of 2024; (iii) the total caseload of the emergency assistance shelter program, delineated by rapid shelter track and bridge shelter track; (iv) the number of families who have applied for emergency assistance shelter in the previous 14 days, delineated by rapid shelter track and bridge shelter track; (v) the number of families who were unable to provide the required verification during application as established under section 6 in the previous 14 days; (vi) the number of families who were unable to provide the required verifications but were granted a case-specific waiver by the secretary of housing and livable communities in the previous 14 days; (vii) the number of families on the waitlist for services under the emergency assistance shelter program, delineated by rapid shelter track and bridge shelter track; (viii) a description of the services provided to such families, delineated by rapid shelter track and bridge shelter track; (ix) the total number of families who have exited the emergency assistance shelter program in the previous 14 days, delineated by rapid shelter track and bridge shelter track and delineating length of stay in emergency shelter of each family; (x) a summary of resources, programs and assistance, including, but not limited to, HomeBASE, used by families who exited shelter in the previous 14 days, delineated by rapid shelter track and bridge shelter track; (xi) the

total number of families who exited emergency shelter in the previous 14 days due to the length of stay limits, delineated by rapid shelter track and bridge shelter track, and including information on resources or supports for those families exiting; (xii) the total number of families on the waitlist who have been placed in emergency shelter in the previous 14 days, delineated by rapid shelter track and bridge shelter track; (xiii) the total number of individuals in the emergency assistance shelter program that are employed; (xiv) the average and median length of stay for families currently in the emergency assistance shelter program, delineated by rapid shelter track and bridge shelter track; (xv) the total number of families who have applied for a hardship waiver established under section 4 and were granted a hardship waiver by the secretary of housing and livable communities in the previous 14 days; (xvi) the total number of hotel and motel rooms in use in the previous 14 days, delineated by municipality; (xvii) the total number of hotel and motel rooms that have been phased out of emergency shelter use in the previous 14 days, delineated by municipality; and (xviii) the total estimated cost of the emergency assistance shelter system for fiscal year 2026 based on projected changes to estimated caseload, capacity and other policy changes under this act.

SECTION 9. The executive office for administration and finance, in consultation with the executive office of housing and livable communities, shall submit a report not later than 60 days following the effective date of this act to the clerks of the senate and house of representatives and the senate and house committees on ways and means detailing a plan to phase out the use of hotels and motels for emergency housing assistance not later than December 31, 2025. The report shall include, but shall not be limited to: (i) the total number of hotel and motel rooms to be phased out; (ii) the planned number of hotel and motel rooms to be phased out each month; (iii) the planned date by which phasing out hotel and motel rooms is to be completed; (iv) the

216 methodology to identify and prioritize hotel and motel rooms to phase out; (v) the
217 communication protocols or plans to inform stakeholders of changes and support families exiting
218 hotels; (vi) the total estimated savings due to phasing out hotel and motel rooms; and (vii) the
219 monthly estimated savings due to phasing out hotel and motel rooms.

220 SECTION 10. Not later than July 31, 2025, the executive office of housing and livable
221 communities, in coordination with the executive office of health and human services, the
222 Massachusetts interagency council on housing and homelessness and family homelessness
223 service providers, shall submit a report to the clerks of the senate and house of representatives
224 and the senate and house committees on ways and means that shall include, but not be limited to:
225 (i) detailed information on the most effective and cost-effective state programs and investments
226 for the prevention of family homelessness; (ii) strategic and cost-effective changes to the
227 emergency housing assistance program that prevent homelessness and promote stable rehousing;
228 and (iii) the impact of various benefit levels for programs, including, but not limited to, the
229 residential assistance for families in transition program and the HomeBASE rental assistance
230 program, on the prevention of family homelessness and on ensuring stable housing for families
231 transitioning out of the emergency housing assistance program.